LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	23CV426734	Phillip Tran et.al. vs Thi Nguyen	Plaintiff moves this court for terminating sanctions against Defendant. Plaintiff propounded discovery on Defendant. Defendant failed to provide verified answers. Defense counsel has been unable to communicate with client. Plaintiff's motion for terminating sanctions striking Defendant's answer to the complaint is GRANTED.
9:00 2	23CV428070	"Janine"Chun Lu vs. Mark Goubert, et.al.	Plaintiff moves this court for leave to amend expert witness disclosure. Plaintiff's motion is unopposed. Plaintiff's motion is GRANTED.
9:00 3	24CV44162	Tech Ky vs. Jesus Hernandez,et.al.	See below.
9:00 4	25CV458361	Cabero vs. Ford Motor Company	Defendant moves this court for summary adjudication as to Plaintiff's sixth cause of action for fraudulent inducement. Plaintiff filed no opposition to this motion. Defendant's motion is GRANTED.
9:00 5	25CV466045	Franceli Aragosa vs. Jimmy Burgos	Defendant petitions this court to compel Plaintiff to answer form interrogatories, special interrogatories, and request for production of documents. Defendant propounded form interrogatories, special interrogatories, and a request for production of documents. Plaintiff failed to answer. Plaintiff failed to object to this motion. Defendant's petition is GRANTED. Defendant's motion for monetary sanctions in the amount of $660 is GRANTED.
9:00 6	25CV475707	Geico Insurance Company vs. Your Help by Q2 Corporaton	Plaintiff moves this court to strike answer to complaint. Defendant filed in pro per. Defendant is a corporation. Defendant filed no objection to the motion to strike answer. Plaintiff's motion to strike is GRANTED.
9:00 7	26CV49011	Zhan Ping Ye, et.al. v. Board of Directors of Summerton Condominium Association, et.al.	See below.
9:00 8	26CV501170	JG Wentworth Organization LLC as Trustee of the 2010 J.T. Trust	Trustee petitions this court for transfer of payment rights. No objections were filed. Petitions is GRANTED.
9:00 9	21CV379107	Xingchuan Pei vs Fengfei Lu	Defendant moves this court to set aside default judgment. Plaintiff used a process server to serve Defendant. Defendant claims that she did not live at the location at the time of service. Oral argument is required.
9:00 10	26CV489051	Citibank N.A. vs Jeanne Chan	See below.
9:01 1	25CV450589	Bastin Michel vs. Kumon North America	Plantiff moves this court for compromise of minor's claim. Minor was the victim of an accident and is 9 years old. Casew will be settled without trial. Plaintiff's motion is GRANTED.
2	25CV477063	Creditors Adjustment Bureau vs. Moya and Sons	Defense counsel moves to withdraw from representation. No objection was filed. Defense counsel's motion to withdraw is GRANTED.

Calendar Line 3

Case Name: *Ky v. Hernandez, et al.*

Case No.: 24CV444162

After full consideration of the evidence, the separate statements submitted by the parties, and the authorities submitted by each party, the court makes the following rulings:

According to the allegations of the complaint, on August 2, 2022, plaintiff Tech Ky ("Plaintiff") was swimming in a designated lane for persons with disabilities at the facility at 762 Sunnyvale-Saratoga Ave. in Sunnyvale of defendant 24 Hour Fitness USA, LLC ("24 Hour") when he was physically and verbally attacked by defendant Jesus Ramirez Hernandez ("Hernandez"). (See complaint, ¶ 8.)

On July 29, 2024, Plaintiff filed the complaint against defendants Hernandez and 24 Hour (collectively, "Defendants"), asserting causes of action for:

1) Assault (against Hernandez);
2) Battery (against Hernandez);
3) Intentional infliction of emotional distress (against Hernandez);
4) Negligence (against all defendants);
5) Negligent hiring, supervision and retention (against 24 Hour); and,
6) Premises liability (against 24 Hour).

Defendant 24 Hour moves for summary judgment, or, in the alternative, for summary adjudication of the third, eight and ninth affirmative defenses, asserting that the complaint is barred by the express liability release in the 24 Hour membership agreement and that it does not have a duty to protect its patrons from the criminal acts of third parties.

DEFENDANT 24 HOUR'S MOTION FOR SUMMARY JUDGMENT, OR, IN THE ALTERNATIVE, FOR SUMMARY ADJUDICATION

Defendant's burden on summary judgment and summary adjudication

others from harm. As such, Plaintiff fails to demonstrate the existence of a triable issue of material fact as to whether the conduct at issue constitutes gross negligence and is thus outside the release of liability.

Plaintiff's arguments that there is a triable issue of material fact as to whether 24 Hour had notice of the assault by Hernandez

Lastly, Plaintiff argues that there is a triable issue of material fact as to whether 24 Hour had notice of the assault by Hernandez. However, again, the evidence submitted by both parties is that Plaintiff admitted that the assault was unexpected. There can be no triable issue of notice if the criminal act was unexpected. (See *Nicole M. v. Sears, Roebuck & Co.* (1999) 76 Cal.App.4th 1238, 1247 (stating that "[p]roperty owners have no duty to prevent unexpected and random crimes"); see also *Alvarez v. Jacmar Pacific Pizza Corp.* (2002) 100 Cal.App.4th 1190, 1209 (stating same).) Plaintiff fails to demonstrate the existence of a triable issue of material fact as to notice of the assault by Hernandez.

As defendant 24 Hour has met its burden to show that the complaint lacks merit against it and, in opposition, Plaintiff fails to demonstrate the existence of a triable issue of material fact, 24 Hour's motion for summary judgment is GRANTED.

Defendant 24 Hour shall prepare and submit a proposed final order and judgment consistent with this tentative ruling.

Calendar Line 7

Case Name: *Zhan Ping Ye et al. v. Summerton Condominium Association et al.*
Case No.: 26CV490111

The court SUSTAINS Defendants' demurrer to the FAC's sixth cause of action with 20 days' leave to amend.

Calendar Line 8

Case Name: *Citibank, N.A. v. Chan*

Case No.: 26CV489051

On March 11, 2026, plaintiff Citibank, N.A. ("Citibank") filed a complaint against defendant Jeannie Y. Chan ("Chan"), asserting a cause of action for breach of a credit card agreement. A proof of service filed on March 23, 2026 states that Chan was personally served on March 21, 2026. On April 13, 2026, Chan filed an answer to the complaint. On April 20, 2026, Chan filed a motion to quash service of the summons and complaint on the ground that the court lacks personal jurisdiction over her due to improper service of process.

"[I]t has long been the rule in California that a party waives any objection to the court's exercise of personal jurisdiction when the party makes a general appearance in the action." (*Roy v. Super. Ct. (Lucky Star Industries, Inc.)* (2005) 127 Cal.App.4th 337, 341; see also *Fireman's Fund Ins. Co. v. Sparks Construction, Inc*. (2004) 114 Cal.App.4th 1135, 1145 (stating that "[a] general appearance operates as a consent to jurisdiction of the person, dispensing with the requirement of service of process, and curing defects in service… a general appearance can make up for a complete failure to serve a summons").) "An answer, of course, is such an appearance, as is expressly made clear by [Code of Civil Procedure] section 1014: 'A defendant appears in an action when the defendant answers, demurs, [or] files a notice of motion to strike.'" (*Roy*, *supra*, 127 Cal.App.4th at p.341; see also *Batchelor v. Finn* (1959) 169 Cal.App.2d 410, 423 (stating that "[t]he filing of an answer is a general appearance"); see also *Neihaus v. Super. Ct. (Vaillancourt)* (1977) 69 Cal.App.3d 340, 345 (stating that "if such a defendant appears by formally answering a complaint, such an appearance is a general appearance and confers jurisdiction upon the court where none existed before").) "It has been long established by decisions of the courts of this state that where a defendant makes a general appearance by the